

CONTRACT TYPE: Consulting Services Agreement

RISK PROFILE: VENDOR-FRIENDLY (risky for client)

CONSULTING SERVICES AGREEMENT

Effective Date: [____], 2024

This Consulting Services Agreement (hereinafter "Agreement") is entered into as of the Effective Date by and between **ACME Corporation**, a corporation organized under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 ("Consultant"), and **ClientCo Ltd.**, a company organized under the laws of England and Wales, with its registered office at 25 Business Park, London, EC2A 1AA, United Kingdom ("Client").

WHEREAS, Client desires to retain Consultant to provide certain consulting services, and Consultant desires to provide such services on the terms and conditions set forth herein; NOW, THEREFORE, in consideration of the mutual covenants herein and for other good and valuable consideration, the Parties agree as follows:

1. SCOPE OF WORK

1.1 Services. Consultant agrees to perform consulting services (the "Services") as described in one or more statements of work executed by the Parties (each, a "Statement of Work" or "SOW"). Consultant shall have sole discretion over the manner and means of performing the Services, provided that the deliverables meet the acceptance criteria set forth in the applicable SOW.

1.2 Performance Standard. Consultant shall perform the Services in a professional manner; however, Consultant makes no warranty that the Services will achieve any specific outcome or result. Client acknowledges that the outcome of consulting engagements is inherently uncertain.

1.3 Changes to Scope. Consultant may decline to perform any Services outside the scope of the applicable SOW. Any request for additional services shall require a new or amended SOW at Consultant's then-current rates, which may differ from the rates in any existing SOW.

1.4 Client Obligations. Client shall promptly provide Consultant with all information, access, and materials reasonably requested by Consultant. Any delay by Client in providing such cooperation shall excuse Consultant from the applicable delivery timeline and may result in additional fees.

2. PAYMENT TERMS

2.1 Fees. Client shall pay Consultant the fees set forth in each applicable SOW. All fees are non-refundable once earned. Unless otherwise specified, Consultant shall invoice Client monthly in advance for the upcoming month's Services.

2.2 Payment. Client shall pay each invoice within sixty (60) days of the invoice date ("**Net 60**"). All payments shall be made in United States Dollars. Amounts not paid when due shall accrue interest at the rate of three percent (3%) per month, compounding monthly, or the maximum rate permitted by applicable law, whichever is higher. Client shall reimburse Consultant for all costs of collection, including attorneys' fees and court costs.

2.3 Suspension for Non-Payment. Consultant may suspend performance of all Services upon ten (10) days' notice if Client fails to pay any amount when due, without any liability to Client and without affecting the accrual of Fees.

2.4 Expenses. Client shall reimburse Consultant for all out-of-pocket expenses incurred in connection with the Services without the requirement of pre-approval for any individual expense below USD \$5,000.

2.5 Rate Adjustments. Consultant may adjust its rates annually upon thirty (30) days' notice. Any in-progress SOW that extends beyond the rate adjustment date shall be invoiced at the adjusted rate for all work performed after the effective date of such adjustment.

3. INTELLECTUAL PROPERTY OWNERSHIP

3.1 Consultant IP Ownership. Notwithstanding anything to the contrary, Consultant shall own all right, title, and interest, including all intellectual property rights, in and to: (a) all deliverables, work product, inventions, developments, and materials developed in the course of performing the Services ("Work Product"); (b) all methodologies, frameworks, tools, techniques, processes, and know-how used or developed in connection with the Services; and (c) all improvements, enhancements, or derivative works created from or incorporating any of the foregoing.

3.2 License to Client. Upon full payment of all Fees due under the applicable SOW, Consultant grants to Client a limited, non-exclusive, non-transferable, non-sublicensable license to use the Work Product solely for Client's internal business purposes. This license may be revoked by Consultant upon written notice if Client breaches any provision of this Agreement.

3.3 Restrictions. Client shall not: (a) modify, adapt, or create derivative works of the Work Product without Consultant's prior written consent; (b) disclose or make available the Work Product to any third party; or (c) use the Work Product for any purpose other than Client's internal operations.

3.4 Client Materials. Client grants Consultant a perpetual, irrevocable, royalty-free license to use Client's data, materials, and intellectual property in connection with the Services and for the development of Consultant's general knowledge base and service offerings.

4. CONFIDENTIALITY

4.1 Client shall maintain the confidentiality of all Consultant Confidential Information and shall not disclose it to any third party. Consultant's obligations with respect to Client's Confidential Information are limited to not disclosing it to third party competitors of Client, provided that Consultant may use Client's Confidential Information for its own internal business purposes, including for improving its services and training its personnel.

4.2 "Confidential Information" means all non-public information designated in writing as confidential. Confidential Information of Consultant includes, without limitation, all Work Product, methodologies, pricing, and business strategies.

5. INDEPENDENT CONTRACTOR STATUS

5.1 Consultant is an independent contractor. Nothing in this Agreement shall be construed to create an employment, agency, partnership, or joint venture relationship.

5.2 Consultant shall determine, in its sole discretion, which personnel to assign to the Services. Consultant may substitute personnel at any time without Client's consent, provided that substitute personnel are reasonably qualified.

6. WARRANTY OF SERVICES

6.1 CONSULTANT PROVIDES THE SERVICES STRICTLY ON AN "AS IS" BASIS. CONSULTANT MAKES NO WARRANTIES, EXPRESS OR IMPLIED, REGARDING THE SERVICES OR ANY WORK PRODUCT, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR THAT THE SERVICES WILL ACHIEVE ANY SPECIFIC RESULT OR OUTCOME. CLIENT ASSUMES ALL RISK IN CONNECTION WITH ITS USE OF THE WORK PRODUCT.

7. LIMITATION OF LIABILITY

7.1 **Exclusion of Consequential Damages.** IN NO EVENT SHALL CONSULTANT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES OF ANY KIND ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY THEREOF.

7.2 **Aggregate Liability Cap.** CONSULTANT'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED FIVE HUNDRED UNITED STATES DOLLARS (USD \$500.00), REGARDLESS OF THE AMOUNT OF FEES PAID BY CLIENT OR THE NATURE OF THE CLAIM.

7.3 **Client Liability.** The limitations of Section 7.1 and Section 7.2 shall not limit Client's liability to Consultant, including without limitation Client's obligation to pay all Fees and to indemnify Consultant.

8. TERM AND TERMINATION

8.1 **Term.** This Agreement shall commence on the Effective Date and continue until all active SOWs are completed or earlier terminated.

8.2 **Termination by Consultant for Convenience.** Consultant may terminate this Agreement or any SOW for any reason upon seven (7) days' prior written notice to Client.

8.3 **Termination by Client.** Client may terminate this Agreement only upon sixty (60) days' prior written notice and solely at the natural expiration of an SOW term. Early termination by Client shall require payment of: (a) all Fees earned through the termination date; (b) all non-cancellable commitments; and (c) a termination fee equal to fifty percent (50%) of the remaining Fees that would have been due under the applicable SOW.

8.4 **Effect of Termination.** Upon termination: (a) all unpaid Fees shall become immediately due; (b) Client shall return all Consultant materials; and (c) all licenses granted to Client shall terminate immediately.

9. GOVERNING LAW AND GENERAL PROVISIONS

9.1 **Governing Law.** This Agreement shall be governed by the laws of California, without regard to conflict of laws principles. Any dispute shall be submitted to binding arbitration under the AAA rules in San Francisco, California, and Consultant may seek injunctive or equitable relief in any court of competent jurisdiction.

9.2 **Entire Agreement.** This Agreement and all executed SOWs constitute the entire agreement. Consultant may amend this Agreement upon thirty (30) days' written notice to Client; continued engagement shall constitute acceptance.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation (Consultant)

By: _____

Name: _____

Title: _____

ClientCo Ltd. (Client)

By: _____

Name: _____

Title: _____

Date: _____

Date: _____

---CONTRACT_END---
